

2:00 PM LINE 4

24-CIV-01921

TRUEBECK CONSTRUCTION, INC., ET AL VS. SETH TAYLOR, ET AL

**TRUEBECK CONSTRUCTION, INC.
SETH TAYLOR**

A ROBERT ROSIN

Plaintiff/Cross-Defendant Truebeck Construction, Inc.'s Motion for Leave to Amend: Does

TENTATIVE RULING:

Parties to appear.

2:00 PM LINE 5

24-CIV-01921

TRUEBECK CONSTRUCTION, INC., ET AL VS. SETH TAYLOR, ET AL

TRUEBECK CONSTRUCTION, INC.
SETH TAYLOR

A ROBERT ROSIN

Defendant/Cross-Complainant BMR-Gateway of Pacific II, LLC's Motion for Leave to Amend Cross-Complaint

TENTATIVE RULING:

For the reasons stated below, the Motion for Leave to File a First Amended Cross-Complaint ("FAXC") filed by Defendant and Cross-Complainant BMR-Gateway of Pacific II LLC ("BMR"), f/k/a BMR-Gateway of Pacific II LP, f/k/a BMR-750, 800, 850 Gateway LP, is **GRANTED**.

BACKGROUND

These consolidated actions arise from disputes concerning SmartLabs' lease and tenant-improvement project at 750 Gateway Boulevard in South San Francisco, including SmartLabs' alleged failure to pay Truebeck Construction, Inc. for construction work and its alleged breach of the lease with BMR.

BMR filed its Cross-Complaint on August 9, 2024. On August 3, 2026, BMR moved for leave to file a FAXC based on information obtained through discovery. The proposed FAXC adds: (1) a tenth cause of action for intentional interference with contractual relations against ArrowMark Agency Services LLC and ArrowMark Colorado Holdings LLC; (2) an eleventh cause of action for intentional interference with contractual relations against Mass Innovation Labs, Inc.; and (3) alter ego allegations against Exycute LLC. The proposed pleading therefore adds ArrowMark Agency Services LLC, ArrowMark Colorado Holdings LLC, and Exycute LLC as new parties.

BMR contends that the proposed amendments arise from facts disclosed in substantial document productions made by the SmartLabs parties and ArrowMark during February, March, and May 2026. The SmartLabs Parties oppose, arguing that BMR delayed in seeking amendment and that the proposed interference and alter ego theories are legally futile.

LEGAL STANDARD

Code of Civil Procedure section 473, subdivision (a)(1), authorizes the Court, in furtherance of justice and on terms that are proper, to permit amendment of a pleading. Section 576 similarly provides that a judge may allow amendment of any pleading at any time before or after commencement of trial. A motion for leave to amend is also governed by California Rules of Court, rule 3.1324. Judicial policy favors liberal allowance of amendments so that disputed matters may be resolved in the same action. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1047; *Nestle v. City of Santa Monica* (1972) 6 Cal.3d 920, 939.) Even where delay is asserted, denial of leave to amend is generally improper absent prejudice to the opposing party. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565.) Courts also ordinarily do not determine the legal sufficiency of a proposed amended pleading on a motion for leave to amend; the preferred practice is to